

“A motion for judgment on the pleadings is the functional equivalent of a general demurrer.” (*Spencer v. City of Palos Verdes Estates* (2023) 88 Cal.App.5th 849, 861.) As such, the grounds for the motion for judgment on the pleadings must appear on the face of the complaint and any judicially noticeable documents. (*Ibid.*) Further, the court must accept as true all material factual allegations in the complaint. (*Ibid.*) The court may take judicial notice of a defendant’s uncontroverted admissions in responses to request for admissions or interrogatories. (*Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 485; *see also Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 549, disapproved on other grounds in *Black Sky Capital LLC v. Cobb* (2019) 7 Cal.5th 156.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Spencer*, 88 Cal.App.5th at 861.)

Defendant admitted the allegations of the complaint in her answer. As defendant filed no opposition to the present motion, the evidence presented is unopposed on the record. (*Arce* 181 Cal.App.4th at 485; *Evans* 28 Cal.App.4th at 549.) Defendant motion alleges the costs of the suit are \$468.50, but defendant has not submitted a memorandum of costs in support.

Based on the foregoing, plaintiff’s motion for judgment on the pleadings is granted. Accordingly, judgment is entered in favor of plaintiff for the principal of \$17,851.63; for pre-judgment interest (at the legal rate of ten percent (10%) per annum from March 3, 2023,) to the date judgment is entered, as alleged in the complaint; and for \$960.00 in attorney’s fees. Plaintiff is awarded costs of suit in an amount to be determined upon filing and service of a memorandum of costs.

3. S-CV-0052372 Baddawi, Samira v. Mi Pueblito Taqueria

Defendants’ joint motion to compel neuropsychological examination of plaintiff is continued to **July 14, 2026, at 8:30 a.m. in Department 32.**

4. S-CV-0053711 City of Lincoln v. The Gathering Inn

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Motion for Protective Order and Motion to Quash

Plaintiff moves for a protective order to prevent defendant The Gathering Inn from taking the deposition of current City Councilmember Ben Brown and former City Councilmember Paul Joiner. Plaintiff also moves to quash the deposition subpoena as to former Councilmember Joiner. Defendant opposes the motion.

Preliminary Matters

Defendant's opposition is also entitled a "Cross-Motion to Compel Brown and Joiner Depositions." However, as plaintiff is entitled to a noticed motion with full briefing, the court declines to consider the "Cross-Motion to Compel" as anything more than an opposition to plaintiff's motion.

Plaintiff's request for judicial notice is granted.

Ruling on the Motion

On a showing of good cause, the court has the discretion to make orders to protect any party from "unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." (Code Civ. Proc., § 2025.420, subd. (a).) "[T]he court, upon motion reasonably made by any [party or witness], . . . may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (Code Civ. Proc., § 1987.1, subd. (a).)

Plaintiff argues that defendant is searching for evidence to support its claim of discrimination but that this is not relevant given the court's ruling sustaining a demurrer on defendant's affirmative defense for discrimination. This argument fails, as the parties have stipulated and the court has approved that defendant may file its cross-complaint including discrimination claims. (Order filed June 30, 2026.)

Plaintiff argues the deposition of Councilmember Brown is prevented by the "Apex" rule, where courts have found a party may not depose high ranking public officials unless they can show the witness has direct personal information pertaining to a material issue in the action and that the information is not otherwise obtainable. (*Contractors' State License Bd. V. Super. Court* (2018) 23 Cal.App.5th 125, 131.) While defendant presents evidence tending to indicate Councilmember Brown may have direct personal information pertaining to material issues in this action (he attended a City Council meeting where he signaled his approval to various remarks, he attended and gave a speech at a protest against defendant's project, and the City Council met in a closed session 3 days after the protest and unanimously voted to sue defendant), defendant presents insufficient evidence to support a finding that this information would not be otherwise obtainable. Based on the information provided to the court, it appears the deposition of Councilmember Brown should not be taken. (Code Civ. Proc., § 2025.420, subd. (b)(1).)

Plaintiff also argues the deliberative process privilege applies here, as "the disclosure of materials would expose an agency's decision-making process in such a way as to discourage candid discussion within an agency and thereby undermine the agency's ability to perform its function." (*Times Mirror Co. v. Super. Court* (1991) 53 Cal.3d 1325, 1342.) Evidence Code section 1040 authorizes a public entity to refuse to disclose

official information if the privilege is claimed and disclosure is forbidden by federal or state law or if disclosure is against the public interest. Plaintiff's motion falls short of making this showing under Section 1040 because it cannot be said disclosure is forbidden by any law nor can it be said that disclosure of discriminatory conduct by public officials as alleged would go against the public interest. Moreover, plaintiff acknowledges in its briefing that if defendant had a discrimination claim, these depositions might be appropriate because they might lead to evidence to prove or disprove defendant's claims. As the parties have stipulated and the court has approved leave for defendant to file its cross-complaint, this argument at this stage in the proceedings lacks merit.

Finally, plaintiff argues the attorney-client privilege applies. However, plaintiff provides insufficient information for the court to determine whether the attorney-client privilege is in fact implicated.

Based on the foregoing, the motion for protective order is granted as to Councilmember Brown under the Apex rule and his deposition shall not be taken. The motion for protective order and the motion to quash are denied as to former Councilmember Joiner.

Motion for Protective Order and Motion to Quash Deposition Subpoena

Plaintiff moves for a protective order to prevent defendant The Gathering Inn from taking the deposition of current City Councilmember Holly Andreatta and moves to quash the deposition subpoena for documents. Defendant opposes the motion.

Preliminary Matters

Defendant's opposition is also entitled a "Cross-Motion to Compel Production of Documents from 'Lincoln against TGI' Facebook Group." However, as plaintiff is entitled to a noticed motion with full briefing, the court declines to consider the "Cross-Motion to Compel" as anything more than an opposition to plaintiff's motion.

Plaintiff's request for judicial notice is granted.

Ruling on the Motion

On a showing of good cause, the court has the discretion to make orders to protect any party from "unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." (Code Civ. Proc., § 2025.420, subd. (a).) The court may issue a protective order precluding production of documents designated in a deposition notice. (Code Civ. Proc., § 2025.420, subd. (b)(11).) "[T]he court, upon motion reasonably made by any [party or witness], . . . may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (Code Civ. Proc., § 1987.1, subd. (a).)

Plaintiff raises numerous arguments as to the documents requested by way of deposition subpoena, several of which may be disposed of quickly. As discovery is broad and need only be reasonably calculated to lead to the discovery of admissible evidence pursuant to Code of Civil Procedure section 2017.010, plaintiff's relevance and "fishing expedition" arguments lack merit. A quick review of the requested documents in the separate statement shows the requests are described with reasonable particularity pursuant to Code of Civil Procedure section 2020.410(a).

Plaintiff also argues the requests are overbroad, impact third-party privacy interests, and that the time and money it would take to produce these documents would be unduly burdensome to third-party Councilmember Andreatta. These three arguments require more attention. As to overbreadth, the requests pertain to "all posts," "all comments," and "all reactions." As this information is not limited to the posts, comments, and reactions of city officials, the requests are overbroad. As to the related concern of third-party privacy interests, associational rights come within the right to privacy as one of several inalienable rights guaranteed to all persons. (Cal. Const., art. I, § 1.) "The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations. [Citation.]" (*Williams v. Super. Court* (2017) 3 Cal.5th 531, 552, citation omitted.) Here, the privacy interests of many non-city officials are implicated by the requests and defendant has not shown what counter-veiling interests disclosure would serve as to the non-city officials. Plaintiff has shown good cause for the court to issue a protective order in part.

As to undue burden, the party or affected person seeking a protective order "shall bear the burden of demonstrating that the information is from a source that is not reasonably accessible because of undue burden or expense." (Code Civ. Proc., § 2025.420, subd. (c).) Towards that end, plaintiff submits the declaration of nonparty Councilmember Holly Andreatta who declares that there are hundreds of posts and comments on this page, the vast majority of which are not hers, and that it would take "dozens of hours" sifting through the page to print each page and its corresponding comments and reactions separately. Doing so would be at significant expense because it would require numerous color ink cartridges to print from her home computer. Councilmember Andreatta also presents evidence she is not an administrator of the Facebook group and would not have the ability to show posts that were deleted, removed, or hidden by administrators, for example. Councilmember Andreatta has sufficiently shown full responses to the requests for production would be unduly burdensome.

Based on the foregoing, the motion to quash is denied. The motion for protective order is granted in part, and defendant's requests for production numbers 1 through 4 are limited to responses pertaining only to city officials who held public office at some point from the date the Facebook group was created in August 2024 to the date of this order. The motion for protective order is granted as to requests for production numbers 5 through 10 and Councilmember Andreatta need not respond to them.

Motion to Compel Further Responses

Plaintiff moves to compel defendant to provide further responses to requests for admissions numbers 11 through 22 and form interrogatory number 17.1 pursuant to Code of Civil Procedure sections 2033.290 and 2030.300. Defendant opposes the motion.

Plaintiff's unopposed request for judicial notice is granted.

Plaintiff's motion to compel further responses is denied as it does not appear requests for admissions numbers 11 through 22 and form interrogatory number 17.1 are "reasonably calculated to lead to the discovery of admissible evidence" pertaining to plaintiff's nuisance claim, any affirmative defense thereto, or the forthcoming cross-complaint.

Motion to Compel

Defendant moves to compel production of documents from "Lincoln Against TGI" Facebook group against non-party witnesses Ashley Allen and Donelle Collins ("nonparty deponents"). Nonparty deponents and plaintiff oppose the motion.

Defendant presents evidence it personally served on nonparty deponents deposition subpoenas with requests for production of documents on March 3, 2026. Defendant presents evidence it received identical objections from each nonparty deponent, wherein they objected as non-parties to the litigation under Code of Civil Procedure section 1987.1. Nonparty deponents argue they are not parties to this litigation, the private Facebook group contains approximately 2,100 members (the overwhelming majority of whom are not parties to this lawsuit), and the subpoenas are overbroad, invade the privacy rights of numerous third-parties, and impose an undue burden on them. Nonparty deponents ask the court to deny the motion or, in the alternative, or to narrow the required responses to specific individuals, communications, or issues directly relevant to the litigation.

The privacy argument as to third-parties is well-taken for the same reasons as outlined above in the court's ruling on plaintiff's motion for protective order and to quash deposition subpoena. As to undue burden, the party or affected person seeking a protective order "shall bear the burden of demonstrating that the information is from a source that is not reasonably accessible because of undue burden or expense." (Code Civ. Proc., § 2025.420, subd. (c).) Towards that end, nonparty deponent Donelle Collins declares a manual review of thousands of posts would be required which would take "many hours, and potentially dozens of hours, locating, reviewing, identifying, collecting, and attempting to produce responsive information." Nonparty deponent has sufficiently shown full responses to the requests for production would be unduly burdensome.

Based on the foregoing, defendant's motion to compel is granted in part and denied in part. The motion to compel is denied as moot as to requests for production numbers 1 through 4, in light of the above ruling on plaintiff's motion for protective order and to

quash deposition subpoena. The motion to compel is granted as to requests for production numbers 5, 9, and 14. The motion to compel is granted in part as to requests for production numbers 6 through 8 and 10 through 13, although responses shall be limited to city officials who held public office at some point from the date the Facebook group was created in August 2024 to the date of this order.

Motion for Stay

Plaintiff the City of Lincoln's motion for stay was withdrawn by stipulation of the parties. (Order filed June 30, 2026.)

Motion for Leave to File a Cross-Complaint

Defendant The Gathering Inn's motion for leave to file a cross-complaint was granted on June 30, 2026 by stipulation of the parties. (Order filed June 30, 2026.)

5. S-CV-0054113 Christenson, Kyle D v. Auburn CDJR

Defendant's Motion for Judgment on the Pleadings

Defendant moves for judgment on the pleadings as to plaintiff's complaint in its entirety. Plaintiff opposes the motion.

"A motion for judgment on the pleadings is the functional equivalent of a general demurrer." (*Spencer v. City of Palos Verdes Estates* (2023) 88 Cal.App.5th 849, 861.) The grounds for the motion must appear on the face of the complaint and any judicially noticeable documents. (*Ibid.*) The court must accept as true all material factual allegations in the complaint. (*Ibid.*) The court may take judicial notice of a defendant's uncontroverted admissions in responses to request for admissions or interrogatories. (*Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 485; *see also Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 549, disapproved on other grounds in *Black Sky Capital LLC v. Cobb* (2019) 7 Cal.5th 156.) The court, however, does not accept the truth of "conclusions of fact or law, opinions, speculation, or allegations contrary to law or judicially noticed facts." (*Spencer*, 88 Cal.App.5th at 861.)

Plaintiff's first cause of action alleges general negligence. Plaintiff alleges his Dodge RAM caught fire after defendant performed repair services by replacing a fuel system part covered by a recall and that defendant has admitted fault. (See complaint at 4.) Plaintiff alleges damages caused by defendant's negligent repairs. Defendant argues this claim is barred by the economic loss rule. (Mot. J. Pleadings at 3-4.)

The economic loss rule provides that, "[i]n general, there is no recovery in tort for negligently inflicted 'purely economic losses,' meaning financial harm unaccompanied by physical or property damage." (*Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 922.) For claims arising from